Lecture Notes: Cyber Laws in India & The IT Act, 2000

I. Introduction to Cyber Law

Cyber law (also known as IT Law) is the branch of the legal system that deals with the Internet, computing, cyberspace, and respective legal issues. In India, the primary legislation governing this domain is the **Information Technology Act, 2000 (IT Act)**.

A. Background and Objectives

The IT Act was enacted to provide legal recognition to electronic commerce and to facilitate the filing of electronic records with the government. It is based on the **UNCITRAL Model Law on Electronic Commerce** adopted by the United Nations in 1996.

Primary Objectives:

- **Legal Recognition:** To give legal validity to transactions carried out via electronic data interchange (EDI).
- **E-Governance:** To facilitate the electronic filing of documents with government agencies.
- **Digital Signatures:** To provide legal sanction to digital signatures for authentication.
- **Cybercrime Regulation:** To define and penalize various types of cybercrimes.

II. Key Provisions of the IT Act, 2000

The Act is divided into several chapters covering everything from digital signatures to penalties and adjudication.

1. Digital and Electronic Signatures (Sections 3 & 5)

The Act provides the legal framework for authenticating electronic records.

- **Section 3:** Explains the use of an asymmetric crypto-system and hash functions to create digital signatures.
- **Section 5:** Grants legal recognition to electronic signatures, treating them as equivalent to physical signatures.

2. Legal Recognition of Electronic Records (Section 4)

This section ensures that where any law requires information to be in writing or typewritten, such requirement is satisfied if the information is rendered in an electronic form and is accessible for subsequent reference.

3. Regulatory Framework

- **Controller of Certifying Authorities (CCA):** The Act provides for the appointment of a Controller to license and regulate the functioning of Certifying Authorities (CAs), who issue Digital Signature Certificates.
- **Cyber Appellate Tribunal (CAT):** Established to hear appeals against the orders of the Adjudicating Officers or the Controller. (Note: Under the Finance Act 2017, the CAT's functions were merged into the Telecom Disputes Settlement and Appellate Tribunal—TDSAT).

III. Major Cyber Offences and Penalties

Chapter XI of the Act specifies various offences. The 2008 Amendment significantly expanded this list.

Section	Offence	Maximum Punishment
Section 65	Tampering with computer source documents	Up to 3 years imprisonment or ₹2 lakh fine
Section 66	Hacking and other computer-related offences	Up to 3 years imprisonment or ₹5 lakh fine
Section 66C	Identity Theft (using someone's password/signature)	Up to 3 years imprisonment and ₹1 lakh fine
Section 66D	Cheating by personation using computer resources	Up to 3 years imprisonment and ₹1 lakh fine
Section 66E	Violation of privacy (publishing private images)	Up to 3 years imprisonment or ₹2 lakh fine
Section 66F	**Cyber Terrorism**	Imprisonment for **Life**
Section 67	Publishing/transmitting obscene material	Up to 3 years (1st conviction) and ₹5 lakh fine
Section 70	Protected Systems (unauthorized access)	Up to 10 years imprisonment

Note on Section 66A: This section, which penalized sending "offensive" messages, was struck down by the Supreme Court of India in the landmark

Shreya Singhal v. Union of India (2015) case for being vague and violating the right to freedom of speech.

IV. Recent Amendments and Contemporary Evolution

Cyber law in India is not static; it has evolved to meet the challenges of AI, deepfakes, and data privacy.

1. Digital Personal Data Protection (DPDP) Act, 2023

While the IT Act initially handled data protection via **Section 43A**, the **DPDP Act 2023** now serves as the primary legislation for data privacy.

- It replaces Section 43A of the IT Act.
- It introduces heavy penalties (up to ₹250 crore) for data breaches.
- It establishes the "Data Protection Board of India."

2. IT Amendment Rules, 2026

As of February 2026, the government introduced the **Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Amendment Rules, 2026**.

- **Synthetically Generated Information (SGI):** Mandates the labeling of AI-generated content (Deepfakes).
- **Two-Hour Takedown:** Intermediaries must remove non-consensual intimate imagery within two hours of a complaint.
- **AI Due Diligence:** Platforms must declare if their algorithms or AI outputs could generate false information.

V. Critical Concepts for Students

- **Intermediary Liability (Section 79):** Intermediaries (like ISP, Facebook, or X) are generally not liable for third-party data or communication links made available by them, provided they follow "due diligence" and "notice and takedown" procedures.
- **Extra-Territorial Jurisdiction (Section 75):** The Act applies to any offence committed outside India by any person if the act involves a computer, system, or network located in India.

VI. Conclusion

The IT Act, 2000 remains the cornerstone of Indian Cyber Law, but it is increasingly supported by specialized laws like the DPDP Act and updated Intermediary Guidelines. For legal professionals and tech-users alike, understanding the shift from mere "computer crimes" to "algorithmic accountability" and "data sovereignty" is essential in the current digital landscape.

Summary for Revision:

1. **IT Act 2000:** Primary law for E-commerce and Cybercrime.

2. **Key Sections:** 43 (Civil Liability), 66 (Criminal Liability), 66F (Terrorism), 79 (Intermediary Protection).
3. **Recent Shift:** Move from Section 43A (IT Act) to the DPDP Act 2023 for privacy.
4. **2026 Update:** Strict focus on AI-generated content and rapid takedown of harmful content.

MCQ Practice

Here are 15 Multiple Choice Questions based on the lecture notes on the IT Act, 2000 and Cyber Laws in India:

MCQs on Cyber Laws in India

1. The Information Technology Act, 2000 is primarily based on which international model law?

A. IEEE Standards

B. UNCITRAL Model Law on E-Commerce

C. GDPR Guidelines

D. Budapest Convention

Answer: B

Explanation: The IT Act was enacted based on the UNCITRAL Model Law adopted by the United Nations in 1996 to harmonize national laws regarding electronic commerce.

2. Which section of the IT Act provides legal recognition to electronic signatures?

A. Section 3

B. Section 5

C. Section 10

D. Section 66

Answer: B

Explanation: Section 5 of the Act grants legal validity to electronic signatures, treating them as equivalent to handwritten signatures for authentication.

3. Under the IT Act, who has the authority to license and regulate Certifying Authorities?

A. The Prime Minister

B. SEBI

C. Controller of Certifying Authorities (CCA)

D. Telecom Disputes Settlement and Appellate Tribunal (TDSAT)

Answer: C

Explanation: The CCA is the regulatory body appointed under the Act to manage Certifying Authorities that issue Digital Signature Certificates.

4. What is the maximum punishment for Cyber Terrorism under Section 66F?

A. 3 years imprisonment

B. 10 years imprisonment

C. Life imprisonment

D. ₹10 lakh fine

Answer: C

Explanation: Due to the severe nature of the crime, Section 66F prescribes life imprisonment for acts of cyber terrorism against the sovereignty and integrity of India.

5. Which landmark Supreme Court case struck down Section 66A of the IT Act?

A. Justice K.S. Puttaswamy v. Union of India

B. Shreya Singhal v. Union of India

C. Vishaka v. State of Rajasthan

D. Kesavananda Bharati case

Answer: B

Explanation: In 2015, the Supreme Court struck down Section 66A in the Shreya Singhal case, citing it as vague and a violation of the right to freedom of speech.

6. Tampering with computer source documents is an offence under which section?

A. Section 65

B. Section 67

C. Section 70

D. Section 43

Answer: A

Explanation: Section 65 specifically deals with the intentional tampering, concealment, or destruction of computer source code.

7. Which new Act replaced Section 43A of the IT Act regarding personal data protection?

A. Right to Information Act

B. Digital Personal Data Protection (DPDP) Act, 2023

C. Indian Penal Code

D. Companies Act

Answer: B

Explanation: The DPDP Act, 2023 is the new primary legislation for data privacy in India, superseding the limited data protection provisions previously found in the IT Act.

8. What does "Intermediary Liability" under Section 79 refer to?

A. Platforms are always responsible for user content.

B. Platforms are never responsible for user content.

C. Safe harbor protection for platforms if they follow due diligence.

D. Direct government control over social media.

Answer: C

Explanation: Section 79 provides "Safe Harbor" protection, meaning intermediaries (like ISPs or social media) aren't liable for third-party content if they adhere to government-mandated due diligence.

9. Violation of privacy by publishing private images of an individual is penalized under:

A. Section 66C

B. Section 66D

C. Section 66E

D. Section 67

Answer: C

Explanation: Section 66E focuses on privacy violations, specifically capturing or transmitting images of a person's private areas without consent.

10. "Identity Theft" (using someone else's password or electronic signature) is covered under:

A. Section 66B

B. Section 66C

C. Section 66F

D. Section 70

Answer: B

Explanation: Section 66C prescribes punishment for identity theft, which involves the fraudulent use of another person's unique identification features.

11. The IT Act applies to offences committed outside India if the act involves a computer located in India. This is known as:

A. Local Jurisdiction

B. Universal Jurisdiction

C. Extra-Territorial Jurisdiction

D. Diplomatic Immunity

Answer: C

Explanation: Section 75 gives the Act extra-territorial reach, allowing Indian authorities to prosecute cybercrimes committed globally if they impact Indian computer systems.

12. What is the maximum penalty for a data breach under the DPDP Act 2023?

A. ₹1 Crore

B. ₹50 Crore

C. ₹250 Crore

D. ₹500 Crore

Answer: C

Explanation: To ensure strict compliance, the DPDP Act 2023 allows for heavy financial penalties up to ₹250 crore for significant data protection failures.

13. According to the 2026 Amendment Rules, how quickly must an intermediary remove non-consensual intimate imagery?

A. Within 24 hours

B. Within 2 hours

C. Within 7 days

D. Within 48 hours

Answer: B

Explanation: The 2026 rules introduced a "Two-Hour Takedown" mandate for sensitive intimate content to prevent its rapid viral spread.

14. Which section deals with unauthorized access to "Protected Systems" (like defense or nuclear installations)?

A. Section 70

B. Section 66

C. Section 43

D. Section 72

Answer: A

Explanation: Section 70 allows the government to declare any computer resource as a "Protected System," and unauthorized access to it carries up to 10 years in prison.

15. What is the primary requirement for a digital signature under Section 3?

A. A physical scan of a signature

B. Use of an asymmetric crypto-system and hash function

C. A username and password

D. An OTP (One Time Password)

Answer: B

Explanation: Legal digital signatures rely on public-key infrastructure (asymmetric cryptography) to ensure the integrity and authenticity of the electronic record.

Lecture Notes: Intellectual Property and Licensing in the Digital Age

I. Introduction to Software Licensing

A **Software License** is a legal instrument (typically by way of contract law, with or without printed material) governing the use or redistribution of software. Under Indian copyright law, software is protected as a "literary work," but the license defines the specific terms of its consumption.

A. Key Concepts in Licensing

- **EULA (End-User License Agreement):** The contract between the licensor (author) and the purchaser, establishing the purchaser's right to use the software.
- **Proprietary vs. Open Source:**
    - **Proprietary:** The source code is hidden, and users pay for the right to use the software under strict conditions (e.g., Microsoft Windows).
    - **Open Source (OSS):** Users have the right to study, change, and distribute the software and its source code (e.g., Linux, VLC).
- **SaaS (Software as a Service):** A modern licensing model where software is hosted centrally and licensed on a subscription basis, common in cloud computing.

II. Concept of Copyright and Patent in Cyberspace

The transition from physical to digital mediums created a "borderless" environment, complicating traditional Intellectual Property Rights (IPR).

1. Copyright in Cyberspace

Copyright protects the **expression of an idea**, not the idea itself. In cyberspace, this includes website content, source code, graphics, and even the "look and feel" of a user interface.

- **Challenge:** Digital content is infinitely reproducible with zero loss in quality. This led to the creation of **Digital Rights Management (DRM)**—technological measures to prevent unauthorized copying.

2. Patents in Cyberspace

A patent protects an **invention**—a functional process or a technical solution.

- **Business Method Patents:** In the US, software that performs a unique business process (like Amazon's "One-Click" buying) can be patented.
- **The Indian Context:** Under Section 3(k) of the Patents Act, 1970, "mathematical methods, business methods, or computer programmes per se" are **not** patentable. However, if the software is part of a "technical application" or is tied to hardware to solve a technical problem, it may be granted a patent.

III. Copyright in the Digital Medium

Digital copyright covers the protection of works that are created, distributed, and stored in digital formats.

Key Legal Challenges:

- **The Reproduction Right:** Every time a webpage is loaded, a temporary copy is created in the RAM of the computer. Courts have had to decide whether these "ephemeral copies" constitute copyright infringement.
- **The Right of Communication to the Public:** In the digital medium, uploading a file to a server for others to download is considered a "communication to the public," requiring the owner's permission.
- **Fair Use in Digital Medium:** Determining what constitutes "fair use" (for education, research, or news) in an era where entire books can be shared via a single link.

IV. Copyright in Computer Programmes

Computer programs are unique because they are both **functional** (they do something) and **expressive** (the code is written in a specific language).

A. Subject Matter of Protection

1. **Source Code:** The high-level code written by programmers.
2. **Object Code:** The machine-readable binary (0s and 1s).
3. **Non-Literal Elements:** This includes the structure, sequence, and organization (SSO) of the program.

B. Infringement Criteria

To prove copyright infringement in software, courts often use the **"Abstraction-Filtration-Comparison" (AFC) Test**:

- **Abstraction:** Breaking the program into its various layers (code, UI, structure).
- **Filtration:** Removing elements that are not protectable (standard industry practices, public domain code).
- **Comparison:** Comparing the remaining core "creative" elements with the infringing software to check for substantial similarity.

V. Copyright and WIPO Treaties

The World Intellectual Property Organization (WIPO) updated international law to address the "Digital Dilemma." Two major treaties, known as the **"WIPO Internet Treaties,"** were adopted in 1996.

[Image comparing WCT and WPPT treaties and their objectives]

1. WIPO Copyright Treaty (WCT)

The WCT is a special agreement under the Berne Convention.

- **Computer Programs:** It explicitly states that computer programs are protected as literary works.

- **Databases:** It protects the selection and arrangement of data in databases (even if the data itself is not copyrighted).
- **Technological Protection Measures (TPMs):** It requires nations to provide legal protection against the "circumvention" of anti-piracy tools (like cracking a software's serial key).

2. WIPO Performances and Phonograms Treaty (WPPT)

This treaty deals with the rights of performers (actors, singers) and producers of phonograms (sound recordings) in the digital world. It ensures they are compensated when their work is streamed or downloaded online.

VI. The Indian Perspective and Modern Trends

India amended its Copyright Act in 2012 to align with the WIPO Internet Treaties.

- **Section 65A:** Criminalizes the circumvention of effective technological protection measures.
- **Section 65B:** Protects "Rights Management Information" (metadata like the author's name or terms of use attached to a digital file).
- **Open Source Movement:** India has a strong "Policy on Adoption of Open Source Software" for government applications to avoid "vendor lock-in" and promote transparency.

MCQ Practice Set

Here are 20 Multiple Choice Questions based on the lecture notes regarding Software Licensing, Copyright, and Patents in Cyberspace.

MCQs on Digital Intellectual Property

1. A software license that allows users to view, modify, and redistribute the source code is known as:

A. Proprietary License

B. Open Source Software (OSS)

C. EULA

D. Patent

Answer: B

Explanation: Open Source Software (OSS) provides the source code to the public, allowing for collaborative modification and redistribution, unlike proprietary software.

2. In India, computer software is primarily protected as which type of work?

A. Artistic Work

B. Musical Work

C. Literary Work

D. Technical Work

Answer: C

Explanation: Under the Indian Copyright Act, computer programs and source code are classified as "literary works" for the purpose of protection.

3. What does "EULA" stand for in software licensing?

A. Electronic User Law Agreement

B. End-User License Agreement

C. Essential User License Association

D. Every User Legal Access

Answer: B

Explanation: EULA is the standard contract between the software creator and the user that defines how the software can be used.

4. Under Section 3(k) of the Indian Patents Act, 1970, which of the following is generally NOT patentable?

A. Mechanical tools

B. Chemical formulas

C. Computer programmes *per se*

D. Medical devices

Answer: C

Explanation: Indian law explicitly excludes computer programs "per se" from patentability, unless they demonstrate a significant "technical contribution" or are tied to hardware.

5. Which test is used by courts to determine copyright infringement in computer programs?

A. The Litmus Test

B. The Abstraction-Filtration-Comparison (AFC) Test

C. The Turing Test

D. The Step-by-Step Test

Answer: B

Explanation: The AFC test helps courts separate the creative elements of code from the functional or standard elements to identify "substantial similarity" in infringement cases.

6. Which international treaty specifically mandates legal protection against the circumvention of Technological Protection Measures (TPMs)?

A. Berne Convention

B. WIPO Copyright Treaty (WCT)

C. TRIPS Agreement

D. Paris Convention

Answer: B

Explanation: The WCT (1996) requires member nations to provide legal remedies against the "cracking" or bypassing of digital locks (DRM/TPMs) used by creators.

7. The "Right of Communication to the Public" in the digital medium refers to:

.A. Sending a private email

B. Making content available for users to access from a place and time of their choice

C. Printing a digital document

D. Fixing a broken computer

Answer: B

Explanation: This right ensures that creators control the uploading and streaming of their work on digital platforms.

8. Which WIPO treaty focuses on the rights of performers and producers of sound recordings in the digital age?

A. WCT

B. WPPT

C. GATT

D. Madrid Protocol

Answer: B

Explanation: The WIPO Performances and Phonograms Treaty (WPPT) addresses the rights of performers and producers specifically in the context of the internet.

9. What are "ephemeral copies" in the context of digital copyright?

A. Physical photocopies

B. Permanent backups

C. Temporary copies created in RAM during computer processing

D. Forged digital signatures

Answer: C

Explanation: Ephemeral copies are temporary data fragments created automatically by hardware (like RAM) to display or process digital content.

10. Digital Rights Management (DRM) is primarily used to:

A. Speed up internet connections

B. Prevent unauthorized copying and distribution of digital content

C. Write better source code

D. Sell hardware components

Answer: B

Explanation: DRM refers to the technological tools (like encryption) that creators use to control and protect their copyright in the digital environment.

11. Which section was added to the Indian Copyright Act in 2012 to protect Rights Management Information?

A. Section 65A

B. Section 65B

C. Section 43

D. Section 66

Answer: B

Explanation: Section 65B provides legal protection for metadata and digital identifiers (Rights Management Information) attached to a copyrighted work.

12. Copyright protects the "Expression of an idea," whereas a Patent protects a/an:

A. Meaningless thought

B. Functional invention or process

C. Physical book only

D. Artistic style

Answer: B

Explanation: Patents are designed to protect technical solutions and functional inventions, while copyright protects the specific creative way an idea is expressed.

13. In the AFC Test, "Filtration" refers to:

A. Removing viruses from the code

B. Deleting code that is public domain or standard industry practice

C. Comparing two programs side-by-side

D. Encrypting the source code

Answer: B

Explanation: Filtration is the process of removing non-protectable elements (like common algorithms) so the court can focus only on the original creative code.

14. What is "SaaS" in the context of modern software licensing?

A. Software as a System

B. Software as a Service

C. Security as a Service

D. Source as a Software

Answer: B

Explanation: SaaS is a licensing model where software is accessed online via subscription rather than being installed locally on a machine.

15. Which of the following is a "non-literal" element of a computer program?

A. The binary code (0s and 1s)

B. The source code written in C++

C. The Structure, Sequence, and Organization (SSO)

D. The hardware it runs on

Answer: C

Explanation: Non-literal elements refer to the logic and organization of the program, which can be protected even if the literal code is slightly changed.

16. The WIPO Internet Treaties were adopted in which year?

A. 1990

B. 1996

C. 2000

D. 2012

Answer: B

Explanation: Both the WCT and WPPT were adopted in 1996 to update international IPR standards for the internet age.

17. Section 65A of the Indian Copyright Act deals with:

A. Punishment for bypass of digital locks (TPMs)

B. Punishment for hacking

C. Registration of patents

D. Fair use for students

Answer: A

Explanation: Section 65A criminalizes the act of circumventing technological protection measures used by copyright owners.

18. Why are databases protected under the WCT even if the data itself is not copyrighted?

A. Because they are stored on computers

B. Because of the creative selection and arrangement of the data

C. Because they are expensive to make

D. Because they contain passwords

Answer: B

Explanation: Even if the raw data is public, the specific way a person selects and organizes that data into a database is considered a creative work.

19. Which licensing model is typically used for products like Microsoft Office 365 or Adobe Creative Cloud?

A. Open Source

B. Subscription-based SaaS

C. Public Domain

D. Perpetual Hardware License

Answer: B

Explanation: These services use the Software as a Service (SaaS) model, where users pay a recurring fee for access rather than a one-time purchase.

20. In digital copyright, the "Right of Communication" is violated if you:

A. Buy a legal CD

B. Read a blog post

C. Upload a copyrighted movie to a public torrent site without permission

D. Delete a file from your own computer

Answer: C

Explanation: Uploading content to a server where the public can access it is a direct exercise (or violation) of the Right of Communication to the Public.

Lecture Notes: Concept of Patent Rights and the Patent Act, 1970

I. The Concept of Patent Rights

A **Patent** is an exclusive right granted by the government to an inventor for a limited period of time in exchange for the full disclosure of their invention. It is a form of Intellectual Property (IP) that allows the creator to exclude others from making, using, selling, or importing the invention without permission.

A. Nature of Patent Rights

- **Territorial:** A patent granted in India is valid only within the geographical boundaries of India.
- **Monopoly for Disclosure:** It is a "social contract." The state grants a 20-year monopoly, and in return, the inventor discloses the technical secrets to the public, which promotes further innovation.
- **Negative Right:** It is essentially the right to *exclude* others rather than a positive right to simply use the invention (as the use might still be subject to other laws).

B. Criteria for Patentability

For an invention to be patentable in India, it must satisfy three core criteria:

1. **Novelty:** The invention must be new and not previously published or used in the "prior art."
2. **Inventive Step (Non-obviousness):** It must involve a technical advancement that is not obvious to a "person skilled in the art."
3. **Industrial Application:** The invention must be capable of being made or used in an industry.

II. The Patents Act, 1970: Key Provisions

The **Patents Act, 1970**, along with the Patents Rules (amended periodically), forms the legal framework for patents in India.

1. What are NOT Inventions (Sections 3 and 4)

One of the most critical aspects of the Indian Act is defining what cannot be patented, even if they meet the criteria of novelty and utility.

- **Section 3(d):** Prevents "Evergreening." The mere discovery of a new form of a known substance which does not result in the enhancement of the known efficacy is not patentable. This is crucial in the pharmaceutical industry.
- **Section 3(k):** Mathematical or business methods, computer programs *per se*, or algorithms are not patentable.
- **Section 3(j):** Plants and animals in whole or any part thereof other than micro-organisms are excluded.
- **Section 4:** Inventions relating to atomic energy are strictly non-patentable for national security reasons.

2. Types of Patent Applications

- **Provisional Specification:** Filed when an invention is still in the testing stage. It secures a "Priority Date."
- **Complete Specification:** Must be filed within 12 months of the provisional application, providing full technical details and "claims."

3. Publication and Examination (Sections 11A & 12)

- Every application is kept secret for 18 months, after which it is published in the Official Journal.
- Unlike copyright, a patent is not granted automatically. A **Request for Examination (RFE)** must be filed by the applicant. An examiner then checks for "prior art" and compliance with the Act.

4. Opposition Proceedings (Section 25)

India provides a robust mechanism for the public to challenge patents:

- **Pre-grant Opposition:** Any person can file an objection after publication but before the grant of the patent.
- **Post-grant Opposition:** Can be filed by an "interested person" within 12 months from the date of the grant.

5. Term of Patent (Section 53)

The term of every patent granted under the Act is **20 years** from the date of filing the application. To keep the patent in force, a renewal fee must be paid annually.

III. Compulsory Licensing (Sections 84-92)

This is a unique and powerful provision in the Indian Patent Act. The government can allow a third party to produce a patented product without the consent of the patent holder under specific circumstances:

1. The reasonable requirements of the public have not been satisfied.
2. The patented invention is not available to the public at a reasonably affordable price.
3. The patented invention is not "worked" (manufactured) in the territory of India.

> **Example:** In 2012, India granted its first compulsory license to Natco Pharma for the production of Nexavar (a cancer drug), as the original patent holder, Bayer, was selling it at a price deemed unaffordable for the general public.

IV. Rights and Obligations of a Patentee

- **Rights:** The right to exploit the patent, assign licenses, and sue for infringement.
- **Obligations:** The duty to "work" the patent in India and the requirement to pay annual maintenance fees. If a patent is not worked, it may face compulsory licensing or even revocation.

V. Conclusion

The Patent Act, 1970, strikes a delicate balance between encouraging private innovation and protecting public interest. Through provisions like Section 3(d) and Compulsory Licensing, India ensures that patent monopolies do not lead to the exploitation of the masses, particularly in life-saving sectors like healthcare and agriculture. Understanding the "Claims" in a patent document is essential, as they define the legal boundaries of the protection granted.

MCQ Practice

Here are 15 Multiple Choice Questions based on the lecture notes regarding the Concept of Patent Rights and the Patent Act, 1970.

MCQs on Indian Patent Law

1. A Patent is known as a "Negative Right" because:

A. It has a negative impact on the economy.

B. It allows the government to take over an invention.

C. It gives the owner the right to exclude others from practicing the invention.

D. It only applies to harmful inventions.

Answer: C

Explanation: A patent does not necessarily give the owner the "right to use" (as other laws might restrict it), but it provides the power to prevent or exclude others from using the invention.

2. What is the standard term of a patent in India from the date of filing?

A. 10 years

B. 15 years

C. 20 years

D. 60 years

Answer: C

Explanation: Under Section 53 of the Patents Act, 1970, the term of every patent is 20 years from the date of filing the application.

3. Which of the following is NOT a mandatory criterion for an invention to be patentable?

A. Novelty

B. Aesthetic Beauty

C. Inventive Step

D. Industrial Application

Answer: B

Explanation: The three legal pillars for patentability are Novelty (newness), Inventive Step (non-obviousness), and Industrial Application (utility). Aesthetic beauty is relevant to Design Law, not Patent Law.

4. Under Section 3(d) of the Patents Act, what is prohibited?

A. Patenting of software

B. Patenting of atomic energy

C. "Evergreening" of patents by showing minor changes without enhanced efficacy

D. Patenting of traditional knowledge

Answer: C

Explanation: Section 3(d) prevents pharma companies from extending their monopoly by making minor, non-efficacious changes to existing drugs, a process known as evergreening.

5. Which section of the Patents Act prohibits the patenting of inventions related to atomic energy?

A. Section 3

B. Section 4

C. Section 10

D. Section 84

Answer: B

Explanation: Due to national security concerns, Section 4 explicitly states that inventions relating to atomic energy are not patentable in India.

6. A "Provisional Specification" is typically filed when:

A. The invention is fully complete and ready for market.

B. The invention is still in the testing or conceptual stage.

C. The patent has already been granted.

D. A foreign company wants to sue an Indian company.

Answer: B

Explanation: A provisional specification allows an inventor to secure a "Priority Date" while they are still refining the technical details of the invention.

7. How much time does an applicant have to file a "Complete Specification" after filing a "Provisional Specification"?

A. 6 months

B. 12 months

C. 18 months

D. 24 months

Answer: B

Explanation: If a complete specification is not filed within 12 months of the provisional filing, the application is deemed to be abandoned.

8. When is a patent application typically published in the Official Journal?

A. Immediately upon filing

B. After 12 months

C. After 18 months

D. Only after the patent is granted

Answer: C

Explanation: Under Section 11A, patent applications are kept secret for 18 months before being published for public notice.

9. "Pre-grant Opposition" can be filed by:

A. Only a rival company

B. Only the Government

C. Any person

D. Only a person with a science degree

Answer: C

Explanation: Section 25(1) allows "any person" to file an opposition in writing against the grant of a patent after it has been published.

10. What is a "Compulsory License"?

A. A license given to every citizen to use a patent.

B. A government-forced license to a third party to address public needs or high prices.

C. A license to drive a vehicle.

D. A license that allows an inventor to stop paying renewal fees.

Answer: B

Explanation: Compulsory Licensing allows the state to break a monopoly if the patentee is not meeting public requirements or is charging exorbitant prices (e.g., for life-saving drugs).

11. Which section deals with mathematical methods, business methods, and computer programs *per se*?

A. Section 3(j)

B. Section 3(k)

C. Section 3(d)

D. Section 5

Answer: B

Explanation: Section 3(k) excludes abstract concepts like algorithms and business models from being patented to prevent the monopolization of basic logic.

12. To keep a patent in force for the full 20 years, the patentee must:

A. File a new application every year.

B. Pay an annual renewal fee.

C. Keep the invention a secret.

D. Give 50% of profits to the government.

Answer: B

Explanation: Maintenance or renewal fees must be paid annually to the Patent Office; otherwise, the patent will lapse and enter the public domain.

13. In the context of Patent law, "Prior Art" refers to:

A. Modern digital art

B. Any technical information available to the public before the filing date

C. The history of the Patent Office

D. The price of the invention

Answer: B

Explanation: Prior art includes all previous patents, publications, and public knowledge worldwide that could prove an invention is not "novel."

14. A "Post-grant Opposition" must be filed within what timeframe from the date of the patent grant?

A. 6 months

B. 12 months

C. 2 years

D. 5 years

Answer: B

Explanation: While pre-grant opposition can be filed by anyone, post-grant opposition must be filed by an "interested person" within 12 months of the grant.

15. What was the significance of the Natco vs. Bayer case in 2012?

A. It was the first time a patent was granted for a computer.

B. It led to the striking down of Section 66A.

C. It resulted in the first Compulsory License granted in India for a cancer drug.

D. It banned all foreign patents in India.

Answer: C

Explanation: This landmark case proved that India would use Compulsory Licensing (Section 84) to ensure that life-saving medications are available at "reasonably affordable" prices.